

India legal, privacy and compliance matrix

This is an engineering compliance assessment, not legal advice. Applicability and final interpretation require Indian counsel. Sources were checked on 2026-07-10.

Business model and regulated features found

The code implements a marketplace for stays, local services and transport; hosts/providers list supply; users book and pay through Razorpay; the platform records payouts, GST-like invoice lines, KYC documents, analytics, chat/voice and safety flows. It also collects caste/community allow-lists and affirmation, and markets/charges "insurance/trip protection" while no insurer or claim process is evidenced.

Matrix

ID	Requirement	Why it may apply	Evidence/current implementation	Gap/risk	Remediation	Owner/document/workflow	Counsel?
LEG-001	Privacy policy under current IT/SPDI expectations	KYC, passwords, financial, contact and location data are collected by an Indian body corporate	Footer #; no privacy route; signup lacks policy version acceptance	High/current gap	Publish purpose, recipients, security, retention and grievance notice	Privacy notice + versioned consent ledger / Legal+Privacy	Yes
LEG-002	DPDP Act/Rules staged implementation	Digital personal data of Indian users and processors	Only marketing consent route; no access/export/delete; no child/processor register	High readiness gap (core duties mostly commence 2027-05-13)	Build notice, consent, rights, deletion, processor and breach programme before commencement	DPDP register/rights SOP / DPO	Yes
LEG-003	Children's data controls	Booking captures children and travel party details	No account age gate/parental flow	High future risk	Decide whether children can hold accounts; age/parental controls and minimisation	Child-data assessment / Product+Legal	Yes
LEG-004	E-Commerce Rules / marketplace disclosures	Platform intermediates provider listings, booking and payment	Seller/entity/grievance/refund disclosures not found	High	Publish entity, seller, price/tax, cancellation/refund and grievance details	Marketplace terms + grievance workflow / Ops	Yes
LEG-005	Dark-pattern/misleading-interface guidelines	Consumer checkout and support UI	Fake contact success/live chat, mock checkout, blanket refund language	High	Remove simulated success; truthful state and explicit acknowledgment	UX review checklist / Product+Legal	Counsel review
LEG-006	IT Rules/GIG/intermediary duties	UGC listings, reviews, chat and AI voice	No functioning grievance/takedown workflow; legal pages absent	High/probable	Appoint grievance officer, publish process, retention/takedown SLA	Grievance register and escalation / Ops	Yes
LEG-007	CERT-In Directions 2022	Body corporate operates API/cloud systems	Prod API log retention 3 months; staging 1 week; no six-hour playbook	High confirmed	India-region protected logs for 180 days; NTP; incident POC and playbook	IRP + retention policy / CISO	Counsel/audit
LEG-008	Consumer refund/cancellations	Fees and payment/refund claims	Web cancellation lacks computed preview; support claims refund	High	One published policy matching server behavior and category-specific terms	Refund SOP + gateway reconciliation / CFO+Legal	Yes

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LEG-009	GST/TCS/supplier-of-record	Platform collects for third-party providers and pays out	Manual payouts; mock GSTIN comment; no TCS ledger/return evidence	High	GST opinion covering s9(5), s52, invoice issuer and category treatment	GST memo, ledgers, returns / CFO	Mandatory
LEG-010	Payment aggregator/PA structure	Razorpay checkout and platform settlements	Razorpay integration exists; settlement/Route structure unclear	Medium/High	Confirm merchant-of-record, settlement, refund, KYC and card-data boundaries	Razorpay contract + flow diagram / Payments	Mandatory
LEG-011	Insurance/IRDAI	UI charges "insurance/trip protection" and creates active policy	No insurer/intermediary, policy wording or claim endpoint	Critical	Disable or obtain licensed insurer/intermediary model and approved wording	Partner agreement, certificate, claims SLA / Legal+CFO	Mandatory
LEG-012	Civil-rights/non-discrimination	Accommodation is filtered/gated by caste/community	Host allow-list and guest affirmation are persisted in booking/email/invoice	Critical risk; exact statutory application requires counsel	Disable collection/filter/gate; preserve evidence; review affected bookings	Counsel opinion + remediation record / CEO+Legal	Mandatory
LEG-013	Aadhaar/KYC minimisation	Sensitive identity documents/numbers collected	S3/Postgres; mock approval; 365-day object lifecycle	High	Avoid full Aadhaar; mask, minimise, human/regulated review, vendor DPA	KYC DPIA/retention schedule / Compliance	Yes
LEG-014	Marketing/cookie/communications consent	Analytics, device IDs, email/SMS/push and marketing toggle	Marketing defaults false; no tracking notice/processor register	Medium	Versioned consent, suppression, cookie/device notice and vendor record	Consent register / Privacy+Marketing	Counsel check
LEG-015	Cross-border processors	Firebase, Google, Vertex, Maps and analytics vendors	No processor contracts/transfer map found	Medium	Vendor register, DPA/SCC-equivalent clauses, transfer assessment	Processor register / Legal+Procurement	Yes
LEG-016	IP/OSS/contractor rights	Large OSS footprint and third-party/generated content	No LICENSE/NO TICE/SBOM/IP assignment evidence found	High diligence gap	OSS inventory/license notices; employee/contractor invention assignments; trademark search	IP data room / Legal+HR	Yes
LEG-017	App-store policy	Account creation, personal data and payments	No working privacy/deletion path; mobile config mismatch	High	In-app/web deletion, privacy URL, store data-safety declarations	Store submission pack / Release+Legal	Policy review

Staged DPDP commencement

The 13 November 2025 notification phases the Act: institutional/enabling sections began on publication; section 6(9) and section 27(1)(d) begin after one year; core sections 3-17 and most rights/consent duties begin after 18 months (**2027-05-13**). The Rules likewise have staged dates. This means "not yet commenced" is not a launch pass: current IT/SPDI, consumer, contract, CERT-In and app-store obligations remain, and the implementation lead time is material.

Authoritative sources: MeitY commencement notification G.S.R. 843(E)

(<https://www.meity.gov.in/static/uploads/2025/11/c56ceae6c383460ca69577428d36828b.pdf>), MeitY DPDP Rules 2025 (<https://www.meity.gov.in/documents/act-and-policies/digital-personal-data-protection-rules-2025-gDOxUjMtQWa?pageTitle=Digital-Personal-Data-Protection-Rules-2025>), CERT-In Directions

(https://www.cert-in.org.in/PDF/CERT-In_Directions_70B_28.04.2022.pdf), CCPA dark-pattern guidelines (<https://consumer.fairs.nic.in/sites/default/files/file-uploads/latestnews/central-consumer-protection-authority-dark-patterns-guidelines-watermark>

k-1565354.pdf), IRDAI insurance intermediaries (<https://irdai.gov.in/insurance-web-aggregators>), Protection of Civil Rights Act (<https://www.indiacode.nic.in/bitstream/123456789/1544/1/A1955-22Eng.pdf>).

Findings

ID	Domain	Title	Severity	Confidence	Evidence	User/business impact	Recommended correction	Effort	Owner	Release blocker	Status
LEG-001	Civil rights	Caste/community restriction implemented	Critical	Confirmed implementation; legal applicability requires counsel	Exclusion, harm, enforcement/reputation	Disable and counsel review	Medium	CEO/Legal/Product	yes	Open	
LEG-002	Insurance	"Insurance" charged without evidenced regulated model	Critical	High confidence	UI/service/controller and no insurer/claims evidence	Mis-selling/regulatory/refund exposure	Disable or regulated partner model	High	Legal/CFO	yes	Open
LEG-003	Privacy	Privacy notice/terms/deletion/export absent	High	Confirmed	routes/footer/users API	Informed consent and rights failure	Publish and implement rights	High	Privacy/Backend	yes	Open
LEG-004	CERT-In	Retention below 180 days	High	Confirmed	CDK 3 months/1 week/1 month	Incident evidence gap	Protected India log store >=180 days	Medium	CISO/SRE	yes	Open
FIN-001	Tax/payments	INR3 fee cannot cover INR42.48 gateway cost at INR1,800 AOV	Critical	Confirmed model	payment fee + seeded fee/commission	Loss on every booking	Reprice/commission and legal/tax review	Medium	CFO	yes	Open